

STATE OF NEW YORK

8943--A

2025-2026 Regular Sessions

IN ASSEMBLY

July 16, 2025

Introduced by M. of A. SAYEGH -- read once and referred to the Committee on Codes -- recommitted to the Committee on Codes in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the penal law and the criminal procedure law, in relation to prohibiting state and federal law enforcement acting within New York from covering their faces or otherwise concealing their identity, except in certain circumstances

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The penal law is amended by adding a new section 190.91 to read as follows:

§ 190.91 Peace officer identity concealment; prohibited.

1. A law enforcement officer, which shall include any person designated as a peace officer under article two of the criminal procedure law, shall not wear any mask or personal disguise while interacting with the public in the performance of their duties, except for medical grade masks which are surgical or N95 respirators designed to prevent the transmission of airborne diseases and masks designed to protect against exposure to smoke when responding to fires or during a state of emergency related to wildfires.

2. The provisions of subdivision one of this section shall not apply to special weapons and tactics (SWAT) team officers utilizing such equipment as necessary to protect such officers' faces from physical harm while performing SWAT responsibilities.

3. All law enforcement officers shall include such officer's name, badge number, or both on such officer's uniforms.

4. For the purposes of this section, "law enforcement officer" means any officer of a local, state, or federal law enforcement agency, or any person acting on behalf of a local, state, or federal law enforcement agency.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 5. The provisions of this section are severable. If any provision of
2 this section or its application is held invalid, that invalidity shall
3 not affect other provisions or applications that can be given effect
4 without the invalid provision or application.

5 Peace officer identity concealment is a class A misdemeanor.

6 § 2. The criminal procedure law is amended by adding a new section
7 2.25 to read as follows:

8 § 2.25 Peace officer identity concealment; prohibited.

9 The attorney general shall have the authority to promulgate and
10 enforce rules and regulations regarding the provisions of section 190.91
11 of the penal law.

12 § 3. This act shall take effect immediately.